



Chapel Street Congregational Church (Southport) Burial Ground Act 1964

CHAPTER viii

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ELIZABETH II



1964 CHAPTER viii

An Act to authorise the removal of the restrictions attaching to the burial ground attached to or comprised in the Congregational Church and Sunday School Building situate at Chapel Street, in the borough of Southport; to authorise the use of the said burial ground for building or otherwise; and for other purposes.

[10th June 1964]

WHEREAS—

(1) The burial ground attached to or comprised in the Congregational Church and Sunday School Building situate at Chapel Street in the borough of Southport is a disused burial ground (hereinafter referred to as “the burial ground”) and has not been used for burials since the year 1893 or thereabouts:

(2) By a conveyance dated the 2nd January, 1963, and made between the Lancashire Congregational Union (Incorporated), in whom the land and buildings of the said church and school and the curtilage thereof (hereinafter referred to as “the said property”) had been duly vested, of the one part and Littlewoods

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Mail Order Stores Limited (hereinafter referred to as "the Company") of the other part, the said property was conveyed to the Company in fee simple freed and discharged from the trusts, powers and authorities contained or referred to in an indenture or trust deed dated the 10th November, 1858, containing the charitable and religious trusts relating to the said property but, insofar as so much of the land comprised in the said property was used formerly as a burial ground, subject to all statutory restrictions affecting the user thereof and to a condition that the graves therein should not be disturbed except under competent authority:

(3) It is expedient that the burial ground should be freed from all restrictions which may affect the same by reason of the burial ground or any part thereof being a disused burial ground and that the Company and their successors in title be empowered to use, deal with or dispose of the burial ground or any part thereof for building or for any other purposes whatsoever freed from all restrictions as aforesaid:

(4) It is expedient that the provisions contained in this Act with respect to the removal from the burial ground of any human remains interred therein should be enacted:

(5) It is expedient that the other provisions contained in this Act should be enacted:

(6) The purposes of this Act cannot be effected without the authority of Parliament:

(7) A plan marked "Chapel Street Congregational Church (Southport) Burial Ground" and showing the burial ground was in the month of November 1963 deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and in the office of the town clerk of the borough of Southport and is in this Act referred to as the deposited plan:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the Chapel Street Congregational Church (Southport) Burial Ground Act 1964.

Interpretation.

2.—(1) In this Act, unless the subject or context otherwise requires—

"the borough" means the borough of Southport;

"the burial ground" means the burial ground situate in the borough shown coloured pink on the deposited plan bounded on the south-east by the north-west side

of Chapel Street, on the south-west by the north-east side of Eastbank Street, on the north-west by the south-east side of Sharrock Street, and on the north-east by the Sunday School Building situate between Chapel Street and Sharrock Street, and includes any part of the said Sunday School Building in which burials may have taken place;

“the Company” means Littlewoods Mail Order Stores Limited;

“the deposited plan” means the plan referred to in the preamble to this Act;

“enactment” has the same meaning as in the Town and Country Planning Act, 1962. 10 & 11 Eliz. 2 c.38.

(2) A document purporting to be certified by the town clerk of the borough to be a copy of the deposited plan deposited at the office of the said town clerk or of any part thereof shall be receivable in evidence and shall be deemed, unless the contrary is shown, to be such a copy.

(3) Except where the context otherwise requires any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment, including this Act.

3. As from the passing of this Act the burial ground shall be freed and discharged from all trusts, uses, obligations, disabilities and restrictions whatsoever which immediately before the passing thereof attached to the burial ground, and from all rights and interests of any person who is a personal representative or relative of any deceased person whose remains are interred in the burial ground and from all other trusts, uses, obligations, disabilities and restrictions whatsoever which attached thereto immediately before the passing of this Act by reason of the burial ground or any part thereof being a disused burial ground or otherwise: Discharge of trusts and restrictions affecting burial ground and saving for private rights.

Provided that nothing in this Act shall operate to affect prejudicially any private right or easement (not being a right in respect of a grave) over the burial ground or any part thereof, which attached thereto immediately before the passing of this Act.

4. Notwithstanding anything contained in any enactment, but subject to the provisions of this Act, it shall be lawful at any time after the passing of this Act to use, deal with or dispose of the burial ground or any part thereof for building or for any other purpose in like manner as if no part thereof had ever been used or set apart for the purpose of burial of human remains. Power to use burial ground for building or other purposes.

Removal of
human
remains from
burial
ground.

5.—(1) Before any person erects or causes to be erected any building on the burial ground or uses the burial ground or causes the same to be used for any purpose other than as a burial ground, the Company shall remove, or cause to be removed, therefrom the remains of all deceased persons interred therein.

(2) Before proceeding to remove any such remains the Company shall give notice of their intention so to do by publishing a notice once in each of two successive weeks in a newspaper circulating in the borough, with an interval between each publication of not less than six days, and shall display a like notice in a conspicuous place on the burial ground and such notice shall have embodied in it the substance of subsections (3), (4), (5), (6), (7), (8) and (9) of this section.

(3) At any time within two months after the first publication of such notice, any person who is a personal representative or relative of any deceased person whose remains are interred in the burial ground may give notice in writing to the Company of his intention to undertake the removal of such remains and thereupon he shall be at liberty, within two months from the date of such last-mentioned notice, to cause such remains to be removed to and reinterred in any other burial ground or cemetery in which burials may legally take place (but in the case of a churchyard only with the consent of the incumbent of the benefice concerned) or to be removed to and cremated in any crematorium.

(4) If any person giving notice to the Company under subsection (3) of this section fails to satisfy the Company that he is such personal representative or relative as he claims to be, the question shall be determined on the application of either party in a summary manner by the Southport County Court, who shall have power to make an order specifying who shall remove the remains and as to the payment of the costs of the application.

(5) The expenses of a removal and reinterment or cremation (not exceeding in respect of remains removed from any one grave the sum of twenty-five pounds) shall be defrayed by the Company such sum to be apportioned if necessary equally according to the number of deceased persons whose remains are in the grave.

(6) If within the aforesaid period of two months after the first publication of the notice mentioned in subsection (2) of this section no notice shall have been given to the Company under subsection (3) of this section in respect of the remains in any grave, or if after such last-mentioned notice has been given the person giving it or, as the case may be, the person specified in any order made under subsection (4) of this section fails to comply with a provision of this section, the Company may remove the remains of the deceased person and cause them to be reinterred in such other burial ground or cemetery in which burials

may legally take place or cremated in such crematorium as the Company think suitable for the purpose but, in the case of interment in a churchyard, the previous consent of the incumbent of the benefice concerned shall be required.

(7) Upon any removal of remains from any part of the burial ground, the Company shall deposit with the Registrar General a certificate of removal and reinterment or cremation giving the dates of removal and reinterment or cremation respectively, identifying the place from which the remains were removed and the place in which they were reinterred or cremated and showing the particulars of each removal separately.

(8) Any tombstone relating to the remains of any deceased person removed under this section shall, at the expense of the Company be removed and re-erected at the place of reinterment or cremation of such remains, or at such place as the said county court may direct on the application (if any) of such personal representative or relative as aforesaid, or, failing such application, on the application of the Company and the Company shall cause a record to be made of each tombstone taken from the burial ground under this section containing—

(a) a copy of the inscription on it; and

(b) if it is intended to preserve the tombstone a statement naming the place to which it has been taken;

and shall deposit a copy of the record with the Registrar General:

Provided that in the case of a tombstone in respect of which no application is made by such personal representative or relative as aforesaid it shall not be necessary to re-erect the tombstone if the Company consider that, by reason of its ruinous condition, it is unsuitable for re-erection and any such tombstone may be disposed of in such manner as the Company may direct.

(9) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer of health of the borough.

6. The provisions of the Town and Country Planning Act, 1962, and any restrictions or powers thereby imposed or conferred in relation to land shall apply and may be exercised in relation to any land notwithstanding that the development thereof is or may be authorised or regulated by or under this Act. Saving for town and country planning.

7. The costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

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